

26PDUD01344 26PDUD01344

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 26PDUD01344 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 12

Date: September 18, 2026

Case No: 26PDUD01344 Trial Date: Not yet set

Case Name: HUSPRF Reit LLC v. Martinez, et al.

DEMURRER

[CCP § 430.10 subd. (e)]

Moving Party: Defendants, Stephanie Martinez, Patricia Mendez-Escamilla, Jeffrey J. Jacobs

Responding Party: Plaintiff, HUSPRF Reit LLC [Unopposed]

RELIEF REQUESTED:

Sustain demurrer to Complaint.

CAUSES OF ACTION: from Form Complaint

1) Unlawful Detainer

SUMMARY OF FACTS:

HUSPRF 290 North Hudson Ave LP ("Plaintiff") is the owner of real property located at 290 N. Hudson Avenue #315W, in Pasadena, CA 91101. Stephanie Martinez, Patricia Mendez-Escamilla, Jeffrey J. Jacobs (collectively, "Defendants") are tenants in the property pursuant to an October 1, 2022 lease agreement. Plaintiff served Defendants with a 3-day notice to pay rent or quit on April 13, 2026. The Complaint alleges that Defendants failed to comply with the requirements of the notice.

ANALYSIS:

"A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties. The time for responding to an amended pleading shall be computed from the date of service of the amended pleading." (CCP, § 472, subd. (a).)

Plaintiff was entitled to file a first amended complaint up until September 4, 2026, nine court days prior to this hearing. Plaintiff filed the FAC on August 7, 2026. Thus, Plaintiff filing the FAC renders the subject Demurrer moot. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477 ["an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading and renders moot a motion directed at the original," internal citations omitted].)

The Demurrer is MOOT.

RULING:

Defendants Stephanie Martinez, Patricia Mendez-Escamilla, and Jeffrey J. Jacobs's Demurrer is MOOT.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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